LAV

DALLA PARTE DEGLI ANIMALI

PUBLIC CONSULTATION ON THE PROPOSAL FOR A REGULATION ON THE WELFARE OF DOGS AND CATS AND THEIR TRACEABILITY

LAV CONSIDERATIONS AND PROPOSALS

The proposed Regulation of the European Parliament and the Council on the Welfare of Dogs and Cats introduces minimum necessary measures on traceability of animals, breeding practices imported into the member countries of the European Union. Although LAV is opposed to animal trade, it shares the purpose of the proposed regulation to dictate minimum standards that all member countries must adhere to, in order to ensure animal traceability and rules for the breeding and transfer of dogs and cats. In fact, there is a lack of legislation at EU level on welfare of dogs and cats, which in the majority of establishments are kept in poor welfare conditions, precarious hygienic conditions. Moreover, females are made to breed relentlessly and puppies are often sold too young, causing serious repercussions on their health and negatively interfering with their proper behavioral development. The movement of dogs and cats within the European Union and their import from Third Countries, constitutes a serious problem since sometimes their identification or documents are falsified, highly contributing to the so-called "puppy trafficking". For instance, in Italy this issue is regulated by the Law n. 201/2010 with the introduction of a specific criminal profile.
However, we believe that the text contains critical issues that undermine the aim of the proposal itself in terms of animal welfare and animal traceability.
Therefore, here below our considerations on certain focal points contained in the proposal that we deem important to be assessed and modified.
In particular, we would like to stress out that one of the most ambitious goals would be the ban on the online sales of animals, in order to indirectly counter the so-called puppy trafficking phenomenon.
In general, however, we have proposed modifications aimed at least at ensuring greater protection for animals sold through the e-commerce.
Hoping that this contribution will be useful to legislative work, we remain available for any clarification.

ARTICLE 2 – PROPOSAL OF CONDITION

Article 2 defines the scope of the proposed regulation by limiting its provisions to dogs and cats; however, animals of other species are also kept for companionship and affection. The current legal framework (consisting of several national legislations regulating the keeping of exotic pet animals) is fragmented. Nine Member States, including Italy, have adopted a "positive list," that is, a list of animals other than dogs and cats whose keeping is permitted. Others MS have not. This also creates difficulties for compliance with national regulations, as animal species whose trade is possible in a supplier country may not be possible in the buyer's country. In support of a "positive list" of animals suitable to be kept for companionship, the Cypriot delegation in May 2022 brought a position paper "to establish a new EU legislative framework for an EU positive list for keeping companion animals" to the attention of Agriculture Ministers. Cyprus's basic thesis, supported by Lithuania, Luxembourg and Malta, is that trade in exotic animals would pose a threat to the survival of many species as well as biodiversity. A positive EU-wide list would increase the level of protection by making a significant contribution to halting biodiversity loss, safeguarding animal welfare, and protecting public health and safety.

We propose to include a provision in the proposed regulation that would mandate the European Commission to include the possibility of adopting implementing acts

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326
info@lav.it

LAV.IT

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to establish a list of animal species allowed to be kept and placed on the Union market.

ARTICLE 3 PARAGRAPH 6 – PROPOSAL OF CONDITION

Article 3 paragraph 6 defines the "supplying" of cats and dogs as "the transferring of ownership or responsibility for dogs or cats through any means or form, whether for a consideration or not, excluding occasional supplies by natural persons of dogs or cats by other means than via the intermediation of an online platform". We do not consider the distinction between "supply" and "occasional supply" that is subject to this definition to be correct, because even occasional supplies assume transfer of ownership or responsibility. In addition, dogs and cats involved in occasional supplies must be the recipients of minimum welfare standards due to the fact that if the minimum criteria in this regulation are not applied, mistreatment can occur, and animal traceability is compromised.

In Article 3 paragraph 6, we propose to delete the following sentence ", excluding occasional supplies of dogs or cats by individuals by means other than the intermediation of an online platform;".

ARTICLE 3 PARAGRAPH 8 – PROPOSAL OF CONDITION

According to Article 3 paragraph 8 'listing' means the publication, on an online platform, of an advertisement for the supply of a dog or a cat;." Regarding this definition, we note that sales advertisement can also be posted on offline media or social networks. Given that this proposed regulation dictates precise provisions on ads, we do not agree that the definition of ads should be limited to their publication on an online platform. We believe it is essential to have a definition of an ad that includes the publication of the same offline and through social networks, also because it is not uncommon that through social networks dogs and cats can be sold that are victims of the so-called puppy trafficking phenomenon.

In Article 3 paragraph 8 we propose to delete the following words "on an online platform,".

ARTICLE 3 PARAGRAPH 20 – PROPOSAL OF CONDITION

Paragraph 20 of Article 3 provides a definition that plays an important role in achieving one of the purposes of this proposed regulation: to dictate minimum standards for animal welfare. "Suffering" is defined as "unpleasant, undesired physical or mental state of being, which is the result of an animal being exposed to noxious stimuli or the absence of important positive stimuli;" However, this definition does not take into account that suffering can also be generated by an environment that does not allow the animal to satisfy its ethological needs, the importance of which is also recognized by the Italian legal system. In fact, Article 727 paragraph 2 of the Penal Code punishes anyone who keeps animals in conditions incompatible with their nature.

In Article 3 paragraph 20 after the words "important positive stimuli" add the words "or from an environment that does not allow him to meet ethological characteristics".

ARTICLE 3 COMMI 21 E 22 – PROPOSAL FOR COMMENT

DALLA PARTE DEGLI ANIMALI

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326

info@lav.it

LAV.IT

LAV è riconosciuta organizzazione non lucrativa di utilità Sociale ed Ente Morale

Paragraphs 21 and 22 of Article 3 define the facilities in which dogs and cats are kept. Regarding the definition of kennels in Paragraph 22, it is not clear what is meant by "individual enclosure." To this we add that dogs and cats are species are social, as a result of which enclosures housing a single animal must be provided if the dog or cat is not compatible with conspecifics.

We think it is very important that the critical issues we have seen in paragraphs 21 and 22 be clarified and not only single housing as well as to provide that the composition of groups take into account the compatibility of animals.

ARTICLE 4 – PROPOSAL OF CONDITION

Article 4 introduces a disagreeable scope of exclusion from Chapter II, stipulating that "This chapter shall not apply to:
–breeding establishments keeping up to three bitches or queens and producing in total two litters or less per establishment and calendar year;
–pet shops keeping at any given time three dogs or less or six cats or less;
–shelters keeping at any given time ten dogs or less or twenty cats or less.

Excluding small establishments from the scope of Chapter II is not supportable because Chapter II dictates the basic principles for animal welfare in relation to their needs in terms of nutrition, environment, health, behavior and mental state. This chapter also establishes the technical requirements for feeding and watering, housing, health, behavioral needs and pain practices that breeding establishments, pet stores and shelters must comply with. It also requires breeding establishments to be approved by the competent authorities, establishes requirements for the competence of animal keepers, and requires establishments to receive veterinary visits. In view of the fact that what Chapter II regulates is fundamental to animal welfare and animal health, excluding small establishments as well as shelters has no justification and, in fact, authorizes the mistreatment of animals kept there. Excluding shelters, stores, or farms with fewer than three animals means, in fact, that the animals might not be fed properly, not be kept in a comfortable environment, and be subjected to painful practices such as, continually tying up body parts. They could be hit, crushed, dragged, exposed to electricity and other practices prohibited under Article 15 of this proposed regulation. In addition, with regard to pet stores, we believe that the sale of dogs and cats should be prohibited there. Studies published during the past 23 years have suggested that dogs sold through pet stores show an increased number of problematic behaviors as adults compared to dogs from other origins, particularly non-commercial breeders (McMillan, 2017, Serpell & Jagoe, 1995).
Selling in stores as well as traveling sales, besides forcing animals into unnatural situations and being a source of profound stress, can lead to unconscious purchases. Moreover, it will be difficult to know where the puppies came from, whether they lived with mother and siblings as much as was necessary for their proper socialization and what kind of life they have led up to that point. Also not to be overlooked is the age-old phenomenon of puppy trafficking, which has one of its major sales channels precisely in stores, markets and online. Aware of this, already 12 member states ban, in fact, the sale of dogs and cats in markets and 7 ban it in pet stores. These include Austria, Belgium and Croatia for example.

Proponiamo che l'ARTICLE 4 debba essere soppresso e che la vendita nei negozi e la vendita itinerante sia vietata.

ARTICLE 5 LETTERA C) – PROPOSAL OF CONDITION

DALLA PARTE DEGLI ANIMALI

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326

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Article 5 paragraph c) positively states that "dogs and cats are kept safe, clean and in good health by preventing diseases, functional impairments, injuries, and pain, due in particular to management, handling practices, or mutilations". However, we would like to draw attention to the importance that mutilations must always be banned. The ban on mutilations applies in the context of cats and dogs bred or kept or placed on the market in the European Union. However, under Article 4 of this proposal, this ban does not apply to small establishments.

Small breeders and pet stores could then sell mutilated dogs and cats. This, in addition to being seriously detrimental to the animals involved would also lead to a distortion of the market by, moreover, favoring sellers who have caused them psycho-physical harm. Amputations, in fact, not only cause pain and distress in the animal, but also affect its life and communication: the dog, for example, uses its tail for balance, to communicate with humans and other dogs, to convey fear, aggression, playfulness, and curiosity. Confirming this, mutilations for non-aesthetic purposes are banned in Italy and other European Union countries. The issue of mutilations has also been addressed by the European Food Safety Authority (EFSA), which issues independent opinions. According to EFSA, some cosmetic or nontherapeutic surgical practices (nail clipping in cats and cutting into ears, tail cutting and vocal cord resection or "devocalization" in dogs) should not be performed unless strictly necessary for the health of animals.

We consider essential to provide for a ban on mutilation for all animals that are the subject of breeding activities, trade, sale for any reason and held by private individuals.

ARTICLE 5 PARAGRAPH 1 LETTERA D) – PROPOSAL FOR COMMENT

According to Article 5 paragraph 1 letter d) dogs and cats must be "kept in an environment that enables them to express social non- harmful behaviour, species-specific behaviour, as well as positive relationship with human beings"

It is unclear what is meant by the term "non-harmful social behavior." Therefore, it is considered useful to clarify this expression.

ARTICLE 6 PARAGRAPH 1 – PROPOSAL FOR COMMENT

Article 6 paragrph 1 states that "Operators and natural or legal persons responsible for shelters shall be responsible for the welfare of dogs and cats kept under their control and for minimizing any risks to their welfare". In order to ensure well-being, risks must not only be minimized, but prevented. Moreover, while prevention is based on objective parameters, "minimize" is vague and discretionary.

We propose to replace "minimize" with "prevent".

ARTICLE 6 PARAGRAPH 2 – PROPOSAL FOR COMMENT

According to Article 6 paragraph 2 Ai sensi dell'ARTICLE 6 PARAGRAPH 2 "Operators and natural or legal persons responsible for shelters shall ensure that dogs and cats are handled by a suitable number of animal caretakers who have the skills and competences required under Article 9". The definition of "adequate" is unclear and leaves room for discretion.

We propose to introduce fixed ratios of janitors to the number of animals. There should be a ratio of one janitor for every three bitches giving birth at the same time

DALLA PARTE DEGLI ANIMALI

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326
info@lav.it

LAV.IT

LAV è riconosciuta organizzazione non lucrativa di utilità Sociale ed Ente Morale

to properly care for the animals without compromising their health and welfare. As for shelters housing stray dogs and cats, a ratio of one caretaker for every 30 animals should be provided.

ARTICLE 6 PARAGRAPH 3 – PROPOSAL OF CONDITION

Article 6 paragraph 3 addresses selection strategies, emphasizing that these should not result in genotypes and phenotypes that have detrimental effects on the welfare of dogs and cats. It is noted, however, that brachycephalic traits will be allowed, provided that the welfare consequences associated with this breeding are minimized. Article 6 paragraph 3, in fact, states: "This paragraph shall not preclude the selection and breeding of brachycephalic dogs and cats provided that the selection or breeding programs minimize the negative welfare consequences of brachycephalic traits." The exemption introduced regarding the selection and breeding of brachycephalic dogs and cats is unacceptable because there will always be welfare consequences associated with brachycephalic animals. They will suffer by the very nature of being bred in this way.

We propose a tout court ban on so-called extreme breeding practices and consequently that of brachycephalic breeds. To this we propose to add a ban on import, advertising and use for shows and competitions.

ARTICLE 8 PARAGRAPH 1 – PROPOSAL FOR COMMENT

Article 8 paragraph 1 states that "When operators and natural or legal persons responsible for shelters place on the market or supply dogs or cats for purposes of keeping them as pet animals, they shall provide to the acquirer of pet the information necessary to enable him or her to ensure the welfare of the animal, including information on responsible ownership." For the purpose of greater protection of the animals involved in the aforementioned activities and for due transparency to the buyer, it is a good idea for the buyer to be given a written notice and specify that it should also contain information on the health status of the animals.

We propose that the word "communicate" be replaced with the words "deliver a written notice" and after "on the responsible property" add "as well as a veterinary medical certificate attesting to its health status".

ARTICLE 8 PARAGRAPH 2 – PROPOSAL OF CONDITION

According to Article 8 paragraph 2 "When the supplying of dogs and cats is advertised via online means, the listing shall display, in clearly visible and bold characters, the following warning:
"An animal is not a toy. Buying or adopting an animal is a life-changing decision. As an animal owner, you are obliged to ensure that all the needs for its health and well-being are met at all times". In view of how animals are not only offered online, it is important that the warning also be displayed in physical facilities where dogs and cats are sold or given away for a nonpayment.

We propose to add that the notice should also be displayed in shelters and other facilities where dogs and cats are given away in any capacity.

ARTICLE 9 PARAGRAPH 1 LETTERA C) – PROPOSAL FOR COMMENT

DALLA PARTE DEGLI ANIMALI

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326

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LAV.IT

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According to Article 9 letter among the competencies of animal janitors is the ability "to apply good animal management practices, to use and maintain the equipment used for the species under their care and to minimize any risks to the welfare of the animals". In order to ensure well-being, risks must not only be minimized, but prevented. Moreover, while prevention is based on objective parameters, "minimizing" is vague and discretionary.

We propose to replace "minimize" with "prevent".

ARTICLE 9 PARAGRAPH 2 – PROPOSAL OF CONDITION

Article 9 paragraph 2 states that "The competences referred to in paragraph 1 may be acquired through education, training or professional experience." However, there is no specification as to whether the training should be up-to-date. In addition, professional experience is no substitute for adequate training in dog and cat ethology and their proper management.

We propose to introduce minimum training criteria and mandatory skills updates for animal janitors every two years. We also propose to replace "education, training or professional experience" with "education, training and professional experience"

ARTICLE 10 PARAGRAPH 1 LETTERA A) – PROPOSAL OF CONDITION

Ai sensi dell'ARTICLE 10 PARAGRAPH 1 lettera a) "1. Operators and natural or legal persons responsible for shelters shall ensure that the establishments under their responsibility receive, at least once a year, a visit by a veterinarian, for the purpose of advising the operator or the natural or legal person responsible for the shelter on measures to address any risk factor for animal welfare". An annual inspection is not sufficient since there are many dogs and cats passing through the premises and therefore the sanitary situation can change even in the course of a few days.

We propose unannounced and more frequent routine visits, at least quarterly, by a veterinarian.

ARTICLE 12 PARAGRAPH 2 LETTERA E) – PROPOSAL FOR COMMENT

According to Article 2 paragraph 2 letter e) "dogs and cats kept outdoors are protected from negative climatic conditions, including thermal stress, sunburn and frostbite."

We propose to add "through appropriate insulation".

ARTICLE 12 PARAGRAPH 4 – PROPOSAL FOR COMMENT

According to Article 12 paragraph 4 "È vietato tenere cani esclusivamente all'interno. I cani tenuti all'interno hanno accesso quotidiano a un'area all'esterno che consenta loro di fare esercizio fisico e di socializzare. Inoltre, quando i cani sono tenuti all'interno di canili, gli operatori progettano e realizzano stabulari individuali per consentire ai cani di accedere liberamente a uno spazio circoscritto all'aperto e a uno spazio all'interno o a un alloggiamento individuale.". Whereas it is not clear what is meant by "individual enclosures," it should be made clear that dogs should be kept in a comfortable environment.

DALLA PARTE DEGLI ANIMALI

sede nazionale
viale regina margherita, 177
00198 roma

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f +39 06 44 61 326
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LAV.IT

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We propose to specify that dogs should be kept in boxes (or fenced areas) with living and sleeping areas, as well as daily access to an area where they can exercise, explore and socialize.

ARTICLE 12 PARAGRAPH 5 - PROPOSAL FOR COMMENT

According to Article 12 paragraph 5 "When cats are kept in catteries, operators shall design and construct individual enclosures to allow cats to move around freely and to express their natural behaviour." Again, it is not clear what is meant by "individual enclosures".

We propose to clarify that holding places should take into consideration the ethology of the cat and provide for vertical enrichment as well.

ARTICLE 13 PARAGRAPH 1 – PROPOSAL OF CONDITION

According to Article 13 paragraph 1 "Operators shall ensure that measures are taken to safeguard the health of dogs and cats in accordance with point 3 of Annex 1.". Inspecting animals once a day is not enough to intervene promptly if an animal is not well.

We propose that animals should be inspected at least three times a day.

ARTICLE 13 PARAGRAPH 2 LETTERA B) – PROPOSAL OF CONDITION

According to Article 13 paragraph 2 letter b) "dogs or cats with signs of disease, sickness, injury or otherwise compromised welfare are transferred, where required, without undue delay to a separate area, are treated by a veterinarian, where appropriate, and kept there until they are fully recovered, or alternatively euthanized without undue delay;". The circumstances under which euthanasia can be carried out are not specified with the consequence that it could be practiced even on animals that, if treated, might recover.

We propose that in line with Italian law, euthanasia should be provided only in the case of seriously ill and incurable animals.

ARTICLE 13 PARAGRAPH 3 LETTERA B) – PROPOSAL OF CONDITION

According to Article 13 paragraph 3 letter b) operator shall ensure that "(b) litter-giving pregnancies of bitches and queens follows a maximum frequency;". There are minimum and maximum ages for breeding, but no minimum age for placing/supplying the animal on the market. Socialization of puppies and kittens begins from birth, but is most important from about three weeks of age, when they develop the sensory and physical skills to learn social behavior toward other animals and people. From three weeks of age, puppies and kittens play with their mother and littermates and develop specific play behaviors and expressions. For proper socialization, it is important that only after sixty days after birth are puppies and kittens allowed to be removed from their mothers, as required by our national regulations.

We propose, in analogy with Italian regulations, we propose that puppies cannot be separated from their mothers before the age of sixty days, except for health reasons certified by a veterinary doctor.

DALLA PARTE DEGLI ANIMALI

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326
info@lav.it

LAV.IT

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ARTICLE 13 PARAGRAPH 3 LETTERA C) – PROPOSAL OF CONDITION

According to Article 13 paragraph 3 letter c) "lactating queens are not mated or inseminated;". The proposal recognizes the existence of significant negative impacts on animal welfare and health due to inbreeding by banning first and second degree mating. (Paragraph 23, considerando). Cats and dogs should be able to conceive naturally. Artificial insemination has led to an increased incidence of hereditary disorders. Special mention should be made of intrauterine insemination, which should always be banned as it is detrimental to animal welfare because it is performed under general anesthesia and the surgery carries high associated risks.

We propose to ban artificial insemination for both cats and dogs. In the alternative, we propose to include restrictions on artificial insemination, which should not be used as a default setting or to overcome problems due to the inability of dogs or cats to mate and conceive naturally. It may be considered only as an exception, such that genetic variability is increased, and should be performed only by a veterinarian.

ARTICLE 14 PARAGRAPH 3 – PROPOSAL OF CONDITION

Article 14 paragraph 3 states that "Tethering within the premises of the establishment for more than 1 hour shall be prohibited, except for the duration of a medical treatment.". Keeping animals tethered is in stark contrast to their psycho-physical well-being because it is a condition that is not compatible with their nature and because it causes severe suffering. The use of the chain and similar tools compromises the animals' freedom of movement with serious harm also to their socialization and can lead to the development of aggressive phenomena.

Animals must not be kept in chains either inside the establishment, even for limited periods of time, or outside.

We propose to replace subsection 3 with "It is prohibited to keep dogs and cats tethered inside the premises of the establishment and outside the establishment."

ARTICLE 15 PARAGRAPH 3 LETTERA A) E D) – PROPOSAL OF CONDITION

According to Article 15 paragraph 3 letters a) and d) "The following handling practices shall be prohibited:

a) tying up body part continuously;

d) prolonged use of muzzles, unless required for health or welfare reasons, in which case the duration shall be limited to the minimum period necessary;"

Tying an animal's body parts is a practice that should be prohibited because it subjects it to a mechanical action that, in addition to being stressful, can cause damage to its health. As for the use of a muzzle, it should be restricted in case of medical-veterinary reasons.

The muzzle prevents animals from enacting natural behaviors such as sniffing, drinking if they need it, for example. Muzzled animals can, in addition, be victims of aggression by animals.

We propose to replace (a) and (d) as follows:

(a) binding body parts;

(d) use muzzles unless necessary for veterinary medical reasons, in which case the duration is limited to the minimum time necessary;

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326

info@lav.it

LAV.IT

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DALLA PARTE
DEGLI ANIMALI

ARTICLE 17 PARAGRAPH 1 – PROPOSTA DI CONVENZIONE

Article 17 paragraph 1 states that "From [3 years from the date of entry into force], all dogs and cats kept in establishments for supply in the Union, including adult dogs and cats kept in breeding establishments, dogs and cats kept in shelters, and dogs and cats supplied by natural persons, shall be marked for identification by means of a subcutaneous transponder containing a microchip, in accordance with Annex II. Operators of establishments shall ensure that dogs and cats born in their establishments are marked for identification by the date of their supply in the Union or at the latest within 3 months after the birth of the animal. The implantation of the transponder shall be performed by a veterinarian or under the responsibility of a veterinarian." As required by Italian law, identification and registration must be mandatory for all dogs and cats, even those kept by private individuals. Identification and registration are essential to prevent abandonment and to ensure traceability of animals; they also make it easier to find them if they are lost. Add to this the fact that when a litter is born, dogs and cats are usually surrendered, and therefore a transfer of ownership occurs even if the transfer is made for a nonpayment. Making identification and registration mandatory only when animals are traded leaves huge inaccuracies in terms of age, origin, health status of animals, etc.

Not only that, but member states may also have different age limits for trading dogs and cats. We also note that providing for identification within three months does not facilitate animal traceability: in Italy, for instance, identification and registration must take place within 60 days of birth. Finally, we emphasize the importance that registration of stray dogs and cats in the Union must be done in the name of the responsible competent authority, as is already the case in Italy.

We propose to make it compulsory for all dogs and cats, including those kept by private individuals, to be identified within sixty days of birth, and to provide that registration of stray dogs and cats be made in the name of the competent health authority.

ARTICLE 21 PARAGRAPH 4 SECOND SENTENCE – PROPOSAL OF CONDITION

According to Article 21paragraph 4 second period "In case the dogs or cats entering into the Union are not yet registered in a Member State database as referred to in Article 19(1), once they arrive at their place of destination, the owner or person responsible for the animal shall ensure their registration into one of the Member States databases within 48 hours of arrival." This provision is in blatant contrast to EU Regulation 576 of 2013 under which, for health reasons, dogs and cats moved within the EU or introduced from third countries must be identified with microchips. Traceability of animals entering the EU must therefore also begin in the country of origin. If it is not guaranteed, health risks may occur, such as the introduction of rabies, as well as the introduction of animals with forged documents, thus fueling the phenomenon of puppy trafficking.

We propose that animal identification and registration should always take place prior to the physical entry of the dog or cat into the member state of destination.

ALLEGATO 1 PUNTO 2.3.1 – PROPOSTA DI CONDIZIONE

sede nazionale
viale regina margherita, 177
00198 roma

t +39 06 44 61 325
f +39 06 44 61 326

info@lav.it

LAV.IT

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According to Annex 1 point 2.3.1 the "Minimum space allowances for dogs and cats (total accessible area, including indoor and confined outdoor space referred to in Article 11(5) where relevant).

Providing a minimum surface of 8 sqm per dog it is not sufficient for the dog's ethological traits, even if recognized as a fairly widespread and accepted standard based on the assessment that a larger area allows a greater amount of movement for the animal. A smaller space, in addition to causing direct physical consequences, such as muscular hypotonia due to lack of exercise, can have negative and serious effects on both ethological needs, by inducing stress and producing repercussions on the dog's psychological condition.

We propose to increase to 8 sqm the space allowance for dogs up to 20kg of weight.

ANNEX 1 POINT 3 – PROPOSAL OF CONDITION

According to Annex 1 point 3:
3.1 Queens shall only be bred if their age is at least 12 months;

3.2 Bitches shall only be bred if their age is at least 18 months;

3.3 Operators shall allow for up to 3 litters per bitch or queen within a period of 2 years.

3.4 After 3 consecutive litter-giving pregnancies of a bitch or a queen within a period of 2 years, operators shall ensure a recuperation period by preventing pregnancies of the bitch or queen for a period of at least 1 year.

For the complete mental and physical development of the future mothers, so that they can raise behaviorally balanced dog and cat puppies, they should only be reproduced if they are at least 24 months of age. In addition, from a veterinary perspective, three pregnancies in two years are classified as stressful because they are associated with physiological and mental strain on the animals. The number of allowed pregnancies should be reduced from three to two pregnancies in two years.

We propose raising the minimum breeding age for females from 12 months to 24 months and allowing a maximum number of pregnancies in two years.

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